

SENATE BILL 1061

By Gardenhire

AN ACT to amend Tennessee Code Annotated, Section
67-5-2013, relative to collection of property taxes.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 67-5-2013, is amended by
designating the existing language as subsection (a) and adding the following new subsection
(b):

(1) With respect to a de minimus personal property tax totaling less than twenty
dollars (\$20.00) as calculated with respect to a specific taxpayer, the county trustee or
other property tax collecting official may, if authorized by a private act, resolution, or
ordinance:

- (A) Decline to bill the tax;
- (B) Decline to refer the tax for further collection; or
- (C) Abate any penalty or interest otherwise due for late payment of the
tax.

(2) The tax collecting official shall maintain a list of de minimus personal property
taxes by taxpayer account and by year, and the tax may be collected when a tax related
to the same account is tendered for a later year; provided, that such collection is not
barred by any applicable statute of limitations.

(3) This subsection (b) applies in a county having a population of not less than
three hundred sixty-six thousand two hundred (366,200) and not more than three
hundred sixty-six thousand three hundred (366,300), according to the 2020 or a

subsequent federal census, if this subsection (b) is adopted by a two-thirds (2/3) vote of the legislative body of such county.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.